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Judgment — Enhancement Appeal Dismissed; Sentence Vacated and Remanded

United States Court of Appeals for the Fourth Circuit United States v. Mateo Serrano
Appeal No. SYN-CA4-26-CR-4201 Document 41 Entered July 28, 2026

In accordance with the published opinion filed today, it is adjudged that Mateo Serrano's appellate target challenging the three-level U.S.S.G. § 3B1.1(b) adjustment is dismissed under the knowing and enforceable appeal waiver. This judgment does not affirm or reverse the adjustment on its merits and expresses no view about whether Serrano managed or supervised another participant.

It is further adjudged that Serrano's sentence is vacated because the district court completely denied him the personal opportunity to allocute before sentence and the plain error affected substantial rights. The matter is remanded to the United States District Court for the Middle District of North Carolina for full resentencing consistent with the opinion.

The conviction remains intact. The district court may calculate the advisory range anew, receive lawful submissions, resolve preserved sentencing questions, address Serrano personally, and impose an independent lawful sentence. No particular term or Guidelines result is directed.

Scope and Costs

The remand concerns the sentence and all components ordinarily considered as part of a complete resentencing. It does not reopen the guilty plea, vacate the conviction, or decide the enhancement issue that this court dismissed. The district court shall afford Serrano the opportunity required by Rule 32(i)(4)(A)(ii) before announcing any new sentence.

Because the disposition combines target dismissal with sentence vacatur, each side shall bear its own appellate costs. This allocation is part of the judgment and does not alter restitution or any district-court monetary component, which remains subject to whatever treatment is legally appropriate at full resentencing.

The clerk shall transmit the public opinion and judgment through the fictional appellate docket. Protected presentence volumes remain subject to the continuing confidentiality order and separate exercise protocol. Neither the judgment nor the mandate authorizes public access to those materials. All parties, people, offices, documents, and events are synthetic.

Entry and Appellate Timing

Judgment is entered on July 28, 2026. Under the ordinary fourteen-day rehearing period applicable to this exercise, a timely petition would be due August 11. If no timely petition or other order intervenes, the mandate is scheduled to issue seven days after that period expires, on August 18, 2026.

This judgment contains no shortening, extension, or stay of those intervals. A later filing would have only the effect supplied by the governing appellate rules and an entered court order. The clerk's schedule does not predict that any party will seek rehearing or other relief.

The judgment and published opinion together state the court's disposition. The opinion supplies the reasons; this document supplies the operative result. The sealed record remains separate from the public docket, and the remand court will receive only those materials transmitted through the certified process.

The ordinary schedule protects each party's opportunity to seek authorized review before jurisdiction returns.

Entered at the direction of the panel.

Maela Cross Fictional Fourth Circuit Exercise Clerk